

24NNCV06446 24NNCV06446

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-24

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Case Number: 24NNCV06446 Hearing Date: September 24, 2026 Dept: P

[TENTATIVE] ORDER GRANTING

PLAINTIFFS' MOTION FOR RELIEF FROM DEEMED ADMISSIONS

I. INTRODUCTION

Plaintiffs Gohar Bosnuyan, Eric

Vivanco-Perez and David Bosnuyan, a minor, by Gohar Bosnuyan as his guardian ad litem ("Plaintiffs"), bring this action against Defendants Hyland Inn Near Pasadena Civic Center; RVN Inc. and Vimal Patel ("Defendants"), alleging causes of action for (1) battery, (2) negligence, (3) intentional infliction of emotional distress, (4) fraudulent concealment, (5) private nuisance, (6) public nuisance, and (7) breach of contract. Plaintiffs allege they were knowingly assigned to a hotel room infested with bedbugs, which caused physical and emotional injuries, property damage, and other harm.

On June 2, 2026, Plaintiffs filed the instant motion for relief from deemed admissions. On June 12, 2026, Defendants filed an opposition. On July 7, 2026, after hearing from counsel, the Court withdrew its tentative ruling denying the motion and permitted the parties to submit supplemental declarations addressing their respective positions and the outstanding issues.

On August 17, 2026, Plaintiffs' counsel submitted a supplemental declaration addressing the outstanding issues. On September 14, 2026, Defendants filed an opposition.

II. LEGAL STANDARD

CCP section 2033.300 provides that

“[a] party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.”

(Code Civ. Proc., § 2033.300(a).) “The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.” (Id., §

2033.300(b).) “The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following: [¶] (1)

[a]n order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission[;] [¶] (2) [a]n order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.” (Id., § 2033.300(c).).

III. ANALYSIS

On July 7,

2026, the Court withdrew its tentative ruling denying Plaintiffs' motion for relief from deemed admissions and permitted the parties to submit supplemental declarations addressing their respective positions and the outstanding issues.

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(Code Civ. Proc., § 2033.300(a).) “The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.” (Id., § 2033.300(b).)

In the supplemental declaration,

Plaintiffs' counsel states that Plaintiff served substantive responses to Defendants RFA, Set One on January 27, 2026, but acknowledges that the responses were not accompanied by executed verifications. (Janfaza Decl., ¶¶ 5-10.) Counsel states that verifications for Plaintiffs Gohar Bosnuyan and David Bosnuyan were executed and transmitted to Defendants on February 19, 2026. (Id., ¶¶ 16-19.) Plaintiff Eric Vivanco-Perez subsequently provided his

verification on August 14, 2026, with counsel explaining that obtaining his verification was delayed due to his incarceration and transfer between facilities. (Id., ¶ 57.)

Although untimely, Plaintiffs' supplemental declaration establishes that substantive responses were provided and that the responses have now been verified. Defendants have not shown that withdrawal of the deemed admissions would substantially prejudice their ability to defend the action on the merits. While Defendants point to Plaintiffs' delay and repeated extensions, the record reflects that Defendants have had Plaintiffs' substantive RFA responses since January 27, 2026. Further, the matter remains set for trial on January 12, 2027.

In light of the service of verified responses, the absence of substantial prejudice to Defendants, and the policy favoring resolution of cases on their merits, the Court finds relief warranted.

Based on the foregoing, the Court
GRANTS Plaintiff's motion for relief from deemed admissions

IV. ORDER

The Court GRANTS
Plaintiffs motion for relief from deemed admissions.

Plaintiffs are to give notice.

Dated: September 24, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT